

STATE OF NEW YORK

2565--A

2025-2026 Regular Sessions

IN SENATE

January 21, 2025

Introduced by Sens. COMRIE, HOYLMAN-SIGAL -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to allowing the higher education services corporation to consider an applicant's change in income due to the loss of employment in determining eligibility and award amount for the tuition assistance program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 5 of section 663 of the education law, as
2 amended by section 3 of part J of chapter 58 of the laws of 2011, is
3 amended to read as follows:

4 5. a. Adjustments of income. In the determination of income for
5 purposes of paragraphs a and b of subdivision three of section six
6 hundred sixty-seven of this part if, during the academic year in which
7 the applicant will receive an award, one of either the parents of the
8 applicant or other dependent child of such parents, the spouse of the
9 applicant, or one or more dependent children of the applicant, in addition
10 to the applicant, will be in full-time attendance in an approved
11 program, the combined net taxable income determined under subdivision
12 one of this section shall be reduced by three thousand dollars and an
13 additional two thousand dollars for each other such person additional to
14 the aforesaid persons (including the applicant) who will be in such
15 attendance, and the resulting amount shall be deemed the applicable
16 income in determining the applicant's award for the academic year.

17 b. The corporation, pursuant to rules and regulations, shall consider
18 an applicant's change in income due to the loss of employment of the
19 applicant or parent of the applicant and utilize the applicant's income
20 reported in New York state income tax returns for the prior calendar
21 year in making adjustments to eligibility and the amount of the award

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 for the current academic year. The corporation may require such documen-
2 tary evidence, testimony or affidavits as it deems sufficient in grant-
3 ing such an adjustment of an award.

4 § 2. This act shall take effect immediately.